

condition of the defendant] unless the court enters an order permitting such discovery pursuant to this subdivision.... Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to section 3294. Such order shall not be considered to be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial.

Here, Plaintiff requests for the first time in her supplemental declaration that the court “set a procedure under Civil Code section 3295(c).” (Doe Supp. Decl. ¶ 14.) This does not provide Defendant with sufficient notice of the requested relief, especially where neither the notice of motion nor the amended notice of motion indicates that Plaintiff intends to seek discovery pursuant to section 3295(c). (See Cal. Rules Ct., rule 3.1110(a) [providing “[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order”].)

For the above reasons, the court **DENIES** the motion to compel production as to RFP Nos. 1, 3, 16-20.

Sanctions

The court finds the circumstances here make the imposition of sanctions unjust and as such, **DENIES** Defendant Brown’s request for monetary and other sanctions against Plaintiff Doe. (Code Civ. Proc., § 2031.310(c).)

Defendant to give notice.

15	Keller vs. Etheridge	<u>Motion for Summary Adjudication</u> OFF-CALENDAR. The matter was CONTINUED to 9/18/26, per Stipulation. (See 9/10/26 Minute Order.)
16	Samuel Hale 2, LLC vs. SS Personnel LLC	<u>Motion for Summary Judgment and/or Adjudication</u> The court GRANTS Plaintiff SAMUEL HALE 2, LLC dba SHE3's unopposed motion for summary judgment on the Complaint filed against Defendants SS PERSONNEL LLC, ROBERT MORINAGA, KENJI SEIJI T. MORINAGA, SIGNATURE SELECT PERSONNEL, LLC, and ESSENTIAL STAFF, LLC. Plaintiff's alternative motion for summary adjudication of issues is DENIED as MOOT. The Complaint asserts the following causes of action: 1. Breach of contract 2. Fraud in the inducement 3. Rescission 4. Unjust enrichment Except for the third cause of action, each cause of action is asserted against each defendant. The third cause of action (for rescission) is asserted against Defendant SS PERSONNEL LLC only. RJN: Plaintiff's request for judicial notice is GRANTED. (Evid. Code § 452(b) and (d).) On 11/12/25, the court entered an order pursuant to the parties' stipulation that Essential Staff, LLC is deemed to be the successor entity to SS Personnel, LLC and/or doing business as Essential Staff. The Complaint is deemed amended to substitute and/or add Essential Staff, LLC as a Defendant in place of, or in addition to, SS Personnel, LLC, and Essential Staff, LLC shall assume all liabilities alleged against SS Personnel, LLC in the existing Complaint. (ROA 175.) According to Plaintiff's proffered evidence: